

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Coyle	Team: Team # 5	CCRB Case #: 200611572	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/20/2006 9:00 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 70	18 Mo. SOL 1/20/2008	EO SOL 1/20/2008	
Date/Time CV Reported Tue, 08/01/2006 3:15 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 08/01/2006 3:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Norman Grandstaff	00588	922445	070 PCT
2. POM Joseph Lafata	11383	935150	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Erin Barry	01321	931540	070 PCT
2. POM John Petrie	07575	930950	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Norman Grandstaff	Abuse: Sgt. Norman Grandstaff stopped the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
B.SGT Norman Grandstaff	Abuse: Sgt. Norman Grandstaff searched the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
C.POM Joseph Lafata	Abuse: PO Joseph Lafata frisked § 87(2)(b)	§ 87(2)(b)
D.POM Joseph Lafata	Abuse: PO Joseph Lafata searched § 87(2)(b)	§ 87(2)(b)
E.SGT Norman Grandstaff	Abuse: Sgt. Norman Grandstaff damaged § 87(2)(b)'s property.	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Synopsis

On July 20, 2006, at approximately 9:00PM, § 87(2)(b) was driving his vehicle in Brooklyn when he was pulled over on § 87(2)(b) and § 87(2)(b) (allegation A). PO Erin Barry, PO Joseph Lafata, and Sgt. Norman Grandstaff then approached § 87(2)(b)'s vehicle. § 87(2)(b) was taken out of his vehicle and Sgt. Grandstaff searched § 87(2)(b)'s vehicle (allegation B). PO Lafata then frisked and searched § 87(2)(b) (allegations C and D). PO Lafata and other officers then joined Sgt. Grandstaff in searching § 87(2)(b)'s vehicle. During the search of § 87(2)(b)'s vehicle, § 87(2)(b)'s car was damaged (allegation E). The officers then left the scene without issuing § 87(2)(b) a summons.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) (a § 87(2)(b) Asian male, § 87(2)(b) provided two statements regarding the incident. § 87(2)(b) filed his complaint with the CCRB in person on August 1, 2006 (enclosure 4a-4i), and viewed officer photos on August 2, 2007 (enclosure 4j-4y).

§ 87(2)(b) thought that the incident occurred on July 22, 2006, but stated at his CCRB interview that he was not sure of the date of the incident. The investigation later concluded that the incident occurred on July 20, 2006, due to a memo book entry made by PO Erin Barry. At approximately 9:00PM, § 87(2)(b) was alone in his car driving along Caton Avenue in Brooklyn when he made a left turn onto § 87(2)(b) was coming from § 87(2)(b) and § 87(2)(b) (his girlfriend's house) and was traveling home to § 87(2)(b). At the time of the incident, § 87(2)(b) was driving a black 2000 Mercedes S500 with Pennsylvania plate § 87(2)(b) black 20" rims on his tires, a 45% tint on his side windows, and a 5% tint on his rear windows. § 87(2)(b)'s windows were all rolled down. § 87(2)(b) was at a stoplight at § 87(2)(b) and § 87(2)(b) when he saw 3 officers in an unmarked black Chevrolet Impala double-parked on § 87(2)(b). The officers were outside of their car. One of the officers stared at § 87(2)(b) before entering his car and making a U-turn to follow § 87(2)(b). § 87(2)(b) recognized the officer because he has stopped § 87(2)(b) on previous occasions. The officer was a white male, rode in the passenger seat of the vehicle, glasses, chubby/husky, brown hair, 6'3", gray shirt, shorts, in his 30's, and identified by § 87(2)(b) in a photo array as PO Joseph Lafata. PO Lafata had two partners, a female officer, who was driving, and another male officer, who rode in the backseat. The female officer was white, approximately 5'6"/5'7", with brown hair, in her 30's, and identified by § 87(2)(b) in his photo array viewing as PO Erin Barry. The male officer was white, skinny, 6'2"-6'3", blonde, dressed in shorts, in his 30's, and identified as Sgt. Norman Grandstaff. § 87(2)(b) made a right turn onto § 87(2)(b) and the officers pulled § 87(2)(b) over at § 87(2)(b) using their lights (allegation A).

PO Lafata and PO Barry approached § 87(2)(b) on the driver's side, and Sgt. Grandstaff approached the passenger side. The officers ordered him to turn off his car. § 87(2)(b) asked why he was being pulled over. The officers asked him for his license and registration. § 87(2)(b) accidentally provided an expired registration, and began to look for the current registration in his center console. § 87(2)(b)'s doors were locked, but his windows were open. PO Lafata reached in and unlocked § 87(2)(b)'s door and began to pull § 87(2)(b) out of the car by his left arm. § 87(2)(b) said, "Hold on," and removed his seatbelt. PO Lafata and PO

Barry pulled § 87(2)(b) out of the car. Once § 87(2)(b) was out of the car, PO Lafata and PO Barry pulled § 87(2)(b) to the back of his car. Sgt. Grandstaff entered § 87(2)(b)'s car and began searching it (allegation B). Sgt. Grandstaff popped the hood of the car and he looked under the hood.

PO Lafata began searching § 87(2)(b) by going through all of his pockets (allegation D). PO Lafata removed about \$800 from § 87(2)(b)'s pocket and asked him where he got the money. § 87(2)(b) answered that it was his money from working. Under questioning, § 87(2)(b) explained that he often carries comparable sums of money on his person, and has the money for any emergency that might arise. PO Lafata also patted § 87(2)(b) down over his body (allegation C) as well as going into all of his pockets.

PO Lafata and PO Barry brought § 87(2)(b) to the rear of their car § 87(2)(b) that he could not see what was going on with his car. PO Lafata joined Sgt. Grandstaff in searching § 87(2)(b)'s car while PO Barry watched § 87(2)(b). § 87(2)(b) looked back towards his car at one point, and PO Barry told him not to turn around. § 87(2)(b) saw that his trunk was open.

Fifteen minutes later, another police car arrived: a black Impala. Those officers began searching § 87(2)(b)'s car also. One officer was a white male, skinny, 5'10", with blonde hair. One officer was a white male, short, with curly brown hair. One officer was a white male. Twenty-five minutes later, another police car arrived: a black Impala, and those too began searching § 87(2)(b)'s car. One officer was a white male, chubby, 6'3", with brown hair. One officer was a white male, short, with blonde hair. The other officer was a white male. § 87(2)(b) recognized the officers from the third black Impala because they have also searched him on previous occasions.

Approximately one hour later, Sgt. Grandstaff called § 87(2)(b) over to his car and said he wanted to show him something. § 87(2)(b) went to Sgt. Grandstaff and saw that he was holding the seat heater to the front passenger seat in his hand. The seat heater is a small electronic box that is situated underneath the seat and is wired to heat the seat when it's turned on. The box is attached to a wire that runs underneath the carpeting of the car. Because the officers had pulled the seat heater out from underneath the seat, the wire ripped up a portion of the carpet on the backseat floor of the car immediately behind the front passenger seat (allegation E).

Sgt. Grandstaff asked § 87(2)(b) "What the hell is that?" § 87(2)(b) became upset and said "That's my heater seats! Y'all ripped my heater seats!" Sgt. Grandstaff told § 87(2)(b) that they had not ripped it (the carpet) and that the carpet was already ripped. Sgt. Grandstaff asked him what was inside of the box. § 87(2)(b) told him, "My heater seats. What do you mean what's in it? Y'all ripped it out." Sgt. Grandstaff told § 87(2)(b) that they were going to search him every time they saw him. The officers then entered their car and left. § 87(2)(b) tried to record their license plate, but their plate had a tint over it, obstructing his view.

§ 87(2)(b)'s glove compartment had been locked when he was pulled from his car, and now he saw that the lock was broken because the officers broke it in order to open it and search inside. § 87(2)(b) began to drive and heard a rattling sound under his hood. § 87(2)(b) pulled over and looked underneath his hood and saw that the plastic cover that is supposed to fit over his engine was loose and rubbing against the fan. § 87(2)(b) replaced the plastic cover as it should have been, and realized that the officers had removed this covering from his engine.

§ 87(2)(b) has not had anything repaired yet, but intends to do § 87(2)(b). § 87(2)(b) admitted that he "had a past" meaning that he sold drugs two or three years ago, but they never caught him doing § 87(2)(b). § 87(2)(b) no longer sells drugs, but he recognized the officers and knows that they recognized him. § 87(2)(b)

§ 87(2)(b)

On August 1, 2006, Inv. Otto took six pictures of § 87(2)(b)'s vehicle. Three of the pictures show § 87(2)(b)'s vehicle. One picture shows the engine or § 87(2)(b)'s car. One picture shows an open glove box. One picture shows § 87(2)(b)'s seat heater with its wire detached and a rip in the carpet.

On August 2, 2007, § 87(2)(b) viewed 14 officer photos at the CCRB. Photos 1-3, 6-7, 9-10, 12, and 14 were filler officers. Photo 4 was Sgt. Norman Grandstaff. Photo 5 was PO Erin Barry. Photo 8 was PO Joseph Lafata. Photo 11 was PO John Petrie. Photo 13 was PO Michael Burke.

§ 87(2)(b) did not recognize the officers in photos 1-3, 6-7, 9-10, 12, and 14. § 87(2)(b) stated that the officer in photo 4 (Sgt. Grandstaff) was in the first car and pulled the heater seats out and the officer. § 87(2)(b) stated that the officer in photo 5 (PO Barry) was in the first car. § 87(2)(b) stated that the officer in photo 8 (PO Lafata) was in the first car, was wearing glasses, and had pulled him out of his car when he was reaching for his license. § 87(2)(b) stated that the officer in photo 11 (PO Petrie) was in the second car and had searched his vehicle. § 87(2)(b) stated that the officer in photo 13 (PO Burke) looked very familiar but was not involved in the incident.

Results of Investigation

Officer Statements

Sgt. Grandstaff

On August 29, 2007, Sgt. Norman Grandstaff appeared at the CCRB (enclosure 5a-5e). Sgt. Grandstaff is a white male, 6'3", and 200lbs. On July 20, 2006, Sgt. Grandstaff worked 5:26PM to 2:10AM. Sgt. Grandstaff was assigned as the anti-crime sergeant and confirmed that he was the supervisor of the anti-crime team. Sgt. Grandstaff thought that he was working with PO Lafata and PO Barry. Sgt. Grandstaff thought that PO Lafata and PO Barry would have been the officers assigned to his car. Sgt. Grandstaff was dressed in plainclothes and assigned to an unmarked black Chevy Impala. Sgt. Grandstaff did not have any entries in his memo book (5a-5b) regarding the incident.

On July 20, 2006, at approximately 9:00PM, Sgt. Grandstaff was in the vicinity of § 87(2)(b) and § 87(2)(b) when he observed a black vehicle with dark tinted windows. Sgt. Grandstaff then pulled the vehicle over. Sgt. Grandstaff did not know what side of the vehicle he approached. Sgt. Grandstaff thought that PO Lafata and PO Barry approached the vehicle as well but he did not remember which side of the vehicle the officers approached. Sgt. Grandstaff recognized the driver as § 87(2)(b) someone who in the past had been arrested § 87(2)(b). Sgt. Grandstaff had also heard from somebody that § 87(2)(b) goes back and forth between New York and Pennsylvania selling guns.

When asked to clarify the information he had at the time of the car stop, Sgt. Grandstaff stated that § 87(2)(b) had been arrested § 87(2)(b) and associates of his had also been arrested § 87(2)(b). When asked what he meant by associates, Sgt. Grandstaff stated friends. Sgt. Grandstaff had also heard from one person that he was going back and forth from Pennsylvania selling guns. Sgt. Grandstaff could not recall who had told him that § 87(2)(b) was selling guns, but thought that it was a prisoner through a debriefing. Sgt. Grandstaff did not remember how long before the incident he had learned that § 87(2)(b) was going back and forth from Pennsylvania selling guns. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Grandstaff was not part of the arrest when § 87(2)(b) was arrested in the past § 87(2)(b). Sgt. Grandstaff did not think that he had stopped § 87(2)(b) before the incident. Sgt. Grandstaff believed that he was able to recognize § 87(2)(b) because after a debriefing he pulled up a picture of § 87(2)(b) and ran his arrest. Sgt. Grandstaff once again added that since the incident he has learned that § 87(2)(b) deals with guns from two sources. Sgt. Grandstaff also added that he has also been informed by people that § 87(2)(b) sells drugs.

Sgt. Grandstaff did not know if he had § 87(2)(b) exit the vehicle or if one of the other officers had § 87(2)(b) exit the vehicle. Sgt. Grandstaff explained that because it was a high crime area, inside of the impact zone which was created to address the high crime area, because of the tinted windows on the vehicle which made it § 87(2)(b) that he could not see inside, and because of § 87(2)(b)'s past history he had § 87(2)(b) exit the vehicle for his safety. § 87(2)(b) was then frisked and the interior of his vehicle was searched in the lungeable and grabbable areas.

Sgt. Grandstaff did not remember which officer frisked § 87(2)(b). Sgt. Grandstaff stated that the officer that did the 250 would have listed the reasons why they frisked § 87(2)(b). Sgt. Grandstaff stated that if he was the person who approached him, he definitely would have frisked him as well, because § 87(2)(b) is known to him, and stated that § 87(2)(b) is known to the other officers as well. When asked to give all of the reasons why § 87(2)(b) was frisked, Sgt. Grandstaff stated that he did not believe he was the officer that frisked § 87(2)(b). Sgt. Grandstaff stated that at the scene he directed another officer to ensure that a 250 was completed. Sgt. Grandstaff remembered directing an officer to complete a 250, but did not remember who

he directed, and confirmed that it would make sense that he would have directed the officer that had frisked § 87(2)(b).

When asked if the search of the vehicle was something he decided to do or something another officer at the scene did, Sgt. Grandstaff stated, “Based on that like I said earlier the tinted windows were dark, for my own safety, once I noticed it was him, I know he has a history with firearms, he is removed from the vehicle, you know its kind of you know, I, I don’t want to say I directed the officers but if it wasn’t done I definitely would have checked it.” The lungeable, grabbable areas were then searched from where § 87(2)(b) was sitting in the vehicle. Sgt. Grandstaff confirmed that he was searching the front and the back seats of § 87(2)(b)’s vehicle. Sgt. Grandstaff confirmed that he was one of the officers that participated in the search. Sgt. Grandstaff thought that other officers were searching the vehicle as well. Sgt. Grandstaff did not recall the hood of § 87(2)(b)’s vehicle being popped open. Sgt. Grandstaff did not believe that § 87(2)(b)’s trunk was opened. Sgt. Grandstaff did not add any additional factors for why he searched the vehicle.

When asked if there was any discussion about a seat heater, Sgt. Grandstaff stated, “Yes. He said that I damaged, or one of the officers damaged some heater in his car under his seat.” Sgt. Grandstaff stated that he really did not know what a seat heater was, but knew the area that § 87(2)(b) was speaking about, and denied that he damaged it. The area was under the passenger seat. A picture of § 87(2)(b)’s seat heater was shown to Sgt. Grandstaff, and Sgt. Grandstaff stated that the picture looked like the seat heater had been removed. Sgt. Grandstaff stated that he remembered the seat heater being under the front seat and denied that he removed it from the vehicle. Sgt. Grandstaff did not remember an officer removing the seat heater from § 87(2)(b)’s vehicle. Sgt. Grandstaff denied that he detached § 87(2)(b)’s seat heater or observed an officer detach the seat heater. Sgt. Grandstaff denied that the carpet on the floor of the vehicle was lifted or ripped. Sgt. Grandstaff believed that when he looked under the seat he saw a black square seat heater which drew his attention that it was possibly a gun. Sgt. Grandstaff denied that he asked § 87(2)(b) what the seat heater was. When asked about § 87(2)(b)’s allegation about ripping out the seat heater, Sgt. Grandstaff explained that § 87(2)(b) said something about him pulling the wire and that it was out a little from its normal position. Sgt. Grandstaff stated that the wire was left in the position that he originally found it.

Sgt. Grandstaff could not recall if the glove compartment was searched and stated that he could not recall if it had a lock. Sgt. Grandstaff did not remember the lock on the glove compartment being broken. Sgt. Grandstaff did not remember searching the glove compartment and did not remember the glove compartment being open. Sgt. Grandstaff did not remember a plastic covering being removed from the hood of § 87(2)(b)’s vehicle.

Sgt. Grandstaff believed that other officers besides PO Lafata and PO Barry arrived at the scene, but he could not remember which other officers arrived. Sgt. Grandstaff knew that another vehicle was called over. Sgt. Grandstaff thought that the other vehicle was called over for the purpose of checking § 87(2)(b)’s license. Sgt. Grandstaff thought that the other officers that arrived were members of the anti-crime team. Sgt. Grandstaff did not remember at what point the additional unit arrived.

Sgt. Grandstaff denied that § 87(2)(b) was searched. Sgt. Grandstaff denied that any officer reached into § 87(2)(b)’s pockets. Sgt. Grandstaff was not aware that § 87(2)(b) had 800 dollars on him. § 87(2)(b) was then sent on his way, nothing was found in the vehicle, and no summons was issued. Sgt. Grandstaff directed an officer to prepare a 250. When asked if a 250 was prepared, Sgt. Grandstaff stated that he told someone to do it, so he would hope so. Sgt. Grandstaff guessed that it would have been PO Lafata or PO Barry who he told to prepare a 250, but confirmed that it could have been one of the other officers that arrived.

PO Lafata

On August 16, 2007, PO Joseph Lafata appeared at the CCRB (enclosure 6a-6j). PO Lafata is a white male, 6’1”, and 260lbs. On July 20, 2006, PO Lafata worked 5:30PM by 2:05AM. PO Lafata was assigned to anti-crime. PO Lafata did not know who he was working with but stated that it would have been one of the members of the anti-crime team. PO Lafata was dressed in plainclothes and assigned to a black or green Impala. PO Lafata did not have any memo book (enclosure 6a-6b) entries related to the incident.

PO Lafata did not recall the incident. PO Lafata stated that he is familiar with § 87(2)(b) as § 87(2)(b) is a known criminal. PO Lafata stated that he has stopped § 87(2)(b) a couple of times in the last two years.

§ 87(2)(b)

PO Lafata provided copies of three arrest reports for § 87(2)(b). The arrests are from § 87(2)(b), § 87(2)(b) and § 87(2)(b). The arrest report from § 87(2)(b) states, "At tpo above deft acting in concert with one unapprehended [sic] perp did point a loaded firearm into victims face and threatened to shoot victim."

PO Barry

Memo Book

PO Barry's memo book (enclosure 7a-7c) on July 20, 2006 at 10:00PM notes, "Car stop § 87(2)(b) -tint."

CCRB Statement

On June 6, 2007, PO Erin Barry appeared at the CCRB (enclosure 7a-7e). PO Barry is a white female, 5'3", and 145lbs. On July 20, 2006, PO Barry worked 5:30PM by 2:05PM and was assigned to anti-crime. PO Barry did not know her partner for the day and stated that she worked on a team. PO Barry was dressed in plainclothes and assigned to a black Impala.

PO Barry stated that § 87(2)(b) is a known criminal and has been arrested multiple times. PO Barry knows that she has stopped § 87(2)(b) in his vehicle a couple of times in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, but could not remember any particulars about the specific incident. PO Barry stated that she has stopped § 87(2)(b) approximately three times. When asked if she always stops § 87(2)(b) for the same reasons, PO Barry explained that § 87(2)(b) has dark tints on his vehicle.

Facts from the case were relayed to PO Barry and PO Barry could not recall the incident. PO Barry could not think of any stop from July 2006 in which § 87(2)(b)'s vehicle was searched. PO Barry could not remember if § 87(2)(b)'s vehicle has ever been searched. A picture of § 87(2)(b)'s seat heater was shown to PO Barry and PO Barry was informed that § 87(2)(b) claimed that the wires were ripped when the heater was taken out of the carpet floor of his vehicle, and PO Barry still had no recollection of the incident.

PO Barry confirmed that there is a good chance that the stop noted in her memo book from July 20, 2006 was the stop of § 87(2)(b).

PO Petrie

On August 23, 2007, PO John Petrie appeared at the CCRB (enclosure 8a-8d). PO Petrie is a white male, 5'10", and 200lbs. On July 20, 2006, PO Petrie worked 5:30PM by 2:05AM, and was assigned to anti-crime. PO Petrie could not recall who he was partnered with, dressed in plainclothes and assigned to an unmarked vehicle. PO Petrie did not have any entries in his memo book (enclosure 8a-8b) regarding the incident.

PO Petrie did not recall the incident and does not know § 87(2)(b). A picture of § 87(2)(b) and his vehicle were shown to PO Petrie and PO Petrie did not recognize § 87(2)(b). PO Petrie did not know if § 87(2)(b) had been arrested before in the 70th Precinct. PO Petrie has been in the 70th Precinct for his entire tenure. PO Petrie has been on the anti-crime team for a year and a half.

Police Documents

Stop, Question, and Frisk Log

§ 87(2)(b)'s name does not appear on the 70th Precinct's stop, question, and frisk log for July 20, 2006 (enclosure 9a-9b) or July 22, 2006 (enclosure 9c).

Stop, Question, and Frisk Report

Requests for the stop and frisk report from July 20, 2006 (enclosure 13u), and July 22, 2006 (enclosure 13c) were returned with negative results.

Roll Call

The desk copy of roll call for the 70th Precinct for July 20, 2006 (enclosure 9d-9e) notes that Sgt. Grandstaff and Sgt. Deighan were assigned as the anti-crime supervisors. Sgt. Deighan worked 5:00PM by 1:57AM, and Sgt. Grandstaff worked 5:26PM by 2:10AM. PO Burke, PO Petrie, PO Stines, PO Barry, and PO Lafata were all assigned to anti-crime and worked 5:30PM by 2:05AM. The desk copy of roll call for the 70th Precinct for July 22, 2006 (enclosure 9f-9g) notes that Sgt. Grandstaff was the anti-crime supervisor and worked 5:26PM by 2:10AM. PO Burke, PO Petrie, PO Lafata, and PO Barry were all assigned to anti-crime and worked 5:30PM by 2:05AM.

Criminal History of Civilian

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(e), § 87(2)(f)

CCRB Complaint History

[illegible]

Substantiated CCRB Allegations which resulted in the Imposition of Discipline

Sgt. Grandstaff has had one allegation substantiated in his 9-year tenure (enclosure 2a-2b). A physical force allegation was substantiated in CCRB case number 200406525 for an incident that occurred on July 4, 2004. Sgt. Grandstaff's NYPD penalty was instructions. PO Lafata has had no allegations substantiated in his 3-year tenure (enclosure 2c).

Conclusions and Recommendations

Officer Identification

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Undisputed Facts

It is undisputed that § 87(2)(b)'s vehicle has tinted windows. It is undisputed that § 87(2)(b)'s vehicle was stopped and searched. It is undisputed that § 87(2)(b) was taken out of his vehicle and frisked. It is also undisputed that § 87(2)(b) and Sgt. Grandstaff had a conversation about § 87(2)(b)'s seat heater.

Disputed Facts

§ 87(2)(g)
[REDACTED]

Assessment of Evidence

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation A: Sgt. Norman Grandstaff stopped the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle had tinted windows. In New York Search and Seizure, Barry Kamins states, "In *People v. Robinson*, the Court of Appeals held that an automobile stop is reasonable when an officer has *probable cause* to believe that an individual has violated the Vehicle and Traffic Law (enclosure 1a-1b)." Kamins goes on to list "excessively tinted windows" as one of the violations of the Vehicle and Traffic Law for which an officer can stop a vehicle. § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation B: Sgt. Norman Grandstaff searched the car in which § 87(2)(b) was an occupant.

Sgt. Grandstaff admitted to searching the lungeable, grabbable areas in § 87(2)(b)'s vehicle. Sgt. Grandstaff did not recall the hood of § 87(2)(b)'s vehicle being popped open and did not believe that § 87(2)(b)'s trunk was opened. § 87(2)(b) claimed that his trunk and hood were also opened, § 87(2)(g)

Sgt. Grandstaff listed the fact that § 87(2)(b) was in a high crime area and § 87(2)(b)'s criminal background as two factors for why § 87(2)(b)'s vehicle was searched. § 87(2)(b)

In New York Search and Seizure, Barry Kamins addresses an officer's right to search a vehicle for weapons and sates, "The court, in *Torres*, held that a police officer may be justified in taking further action where the facts present an 'actual and specific danger' to the officer's safety (enclosure 1d)." § 87(2)(g)

Allegation C: PO Joseph Lafata frisked § 87(2)(b)

Allegation D: PO Joseph Lafata searched § 87(2)(b)

It is undisputed that an officer frisked § 87(2)(b) § 87(2)(g) § 87(2)(b) identified the officer that frisked and searched him as PO Lafata in his photo array viewing at the CCRB. PO Lafata did not recall the incident and no 250 was prepared. § 87(2)(g)

Allegation E: Sgt. Norman Grandstaff damaged § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: